

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

TO

(Related: CGC-21-594102)

**NOTICE OF MOTION AND MOTION
FOR RECONSIDERATION
OF MAY 12, 2026 ORDER GRANTING
SPECIAL MOTION TO STRIKE
(CODE CIV. PROC., §§ 1008(a), 473(d);
INHERENT AUTHORITY;
EVID. CODE, §§ 451–453)**

Date: [TBD, confirm on reservation system]

Time: [TBD]

Dept.: 301

Judge: Hon. Christine Van Aken

Reservation No.: [Reserve via court system; insert before
filing.]

THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on the date and time above, or as soon thereafter as the matter may be heard, Plaintiff Franciscus Dylan Rosario will move this Court for an order reconsidering the Court's May 12, 2026 order granting Defendants' special motion to strike the First Amended Complaint under Code of Civil Procedure section 425.16.

The motion is made on the following grounds:

1. **Code of Civil Procedure section 1008, subdivision (a)** (new or different law, facts, or record available after the ruling, including a complete record of materials plaintiff placed before the Court and judicially noticeable law and court records under Evidence Code sections 451, 452, and 453).
2. **Code of Civil Procedure section 473, subdivision (d)**, if and to the extent the entered order's text is void or subject to relief under that subdivision (verify against the endorsed minute order or signed order before finalizing this notice).
3. **Inherent authority to reconsider** to correct legal error and prevent manifest injustice, including authority discussed in Le Francois v. Goel (2005) 35 Cal.4th 1094.
4. **Record support: Plaintiff's Memorandum of Points and Authorities; Declaration of Franciscus Dylan Rosario; Request for Judicial Notice (Preservation of Law); Request for Judicial Notice (Plaintiff-Filed Materials and Defense Sequence) with Exhibit A** (chronological index tied to FAC III.D); **Exhibit Index**; and **Proposed Order**, filed concurrently herewith.
5. **Incorporation by reference** under California Rules of Court, rule 3.1113, subdivision (j), of plaintiff's prior filed opposition, requests for judicial notice, exhibit volumes, and contest papers in this action once their **Register of Actions** sequence numbers are confirmed and listed in the Memorandum.
6. **Supplemental May 7 and May 11 materials** described in the Memorandum (May 12 hearing-package items **13, 14, 15, and 17**: section **425.17** notice; supplemental judicial notice re Insurance Code and FCSPP; motion to strike reply declaration under Jay v. Mahaffey; bench brief and gateway exhibit packet in folder **17**), for reconsideration of whether the entered order rested on an incomplete prong-two record.
7. **May 11, 2026 second supplemental RFJN and appellate preservation (folder 20) and RJN of governing law packet materials (folder 21)**, incorporated by reference as listed in the Memorandum and RFJN tables once ROA numbers are confirmed.
8. **Proposed Third Amended Complaint (Exhibit T)** lodged with plaintiff's May 11, 2026 combined papers, for leave to cure pleading deficiencies consistent with Nguyen-Lam v. Cao

(2009) 171 Cal.App.4th 858 and California Rules of Court, rule 3.1324, if the Court determines amendment is appropriate after reconsideration.

RELIEF REQUESTED (SUMMARY)

Vacate or modify the May 12, 2026 grant of the special motion to strike; restore the First Amended Complaint for further proceedings consistent with law; preserve fee issues for separate noticed motion as appropriate; grant leave to file or deem filed the **Proposed Third Amended Complaint (Exhibit T)** if amendment is necessary to align the operative pleading with any ruling on reconsideration; and grant any other relief listed in the **Proposed Order**.

Dated: May 13, 2026

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

Dated: May 13, 2026



FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody

Rohnert Park, CA 94928

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113	Notice of motion contents	Caption, grounds list, relief summary	Notice body
2	CCP 1008(a); 473(d)	Grounds stated in notice	Enumerated items 1–7	Notice enumerate
3	CRC 3.1324	TAC relief noticed consistently	Item 7 and relief section reference memorandum and Exhibit T path	Relief section
4	CCP 1010.6; CRC 2.251	Electronic service (if applicable)	POS filed per separate template	POS-050 path when filed